

The Fairy and The Witch

BY

A. D. NELSON.



PRICE 15 CENTS

Eldridge Entertainment House
Franklin, Ohio

The Fairy and The Witch

BY

A. D. NELSON.



PRICE 15 CENTS

Eldridge Entertainment House
Franklin, Ohio

The Project Gutenberg eBook of The Fairy and the Witch

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Fairy and the Witch

Author: A. D. Nelson

Release date: September 13, 2020 [eBook #63192]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/63192

Credits: E-text prepared by Mary Glenn Krause, David E. Brown, and the Online Distributed Proofreading Team (<http://www.pgdp.net>) from page images generously made available by Internet Archive (<https://archive.org>)

*** START OF THE PROJECT GUTENBERG EBOOK THE FAIRY
AND THE WITCH ***

The Project Gutenberg eBook, The Fairy and the Witch, by A. D. Nelson

Note: Images of the original pages are available through Internet Archive. See <https://archive.org/details/fairywitch00nels>

The Fairy and The Witch

BY
A. D. NELSON.



PRICE 15 CENTS

**Eldridge Entertainment House
Franklin, Ohio**

—HERE ARE—
SOME OF OUR VERY NEW TITLES

It is always a satisfaction to be the first to get hold of new
and novel entertainments, and here is **YOUR** chance:

PLAYS FOR FEMALE CHARACTERS

Aunt Deborah's First Luncheon	25c
When Shakespeare Struck The Town	25c
Ye Tea Party of Ye Olden Time	25c

TWO CLEVER MUSICAL PLAYS FOR CHILDREN

Under The Sugar Plum Tree	40c
In Little Folks Town	40c

TWO NEW MOCK TRIALS

Father Time's Christmas Trial	15c
Will Soakum's Matrimonial Bureau	25c

THREE SPLENDID BOOKS

Dramatic Stories, Myths and Legends	{ Paper 35c; Boards
For Children—The Stage or School Room	

50c

Good Stunts for Commencement Week	50c
Novelties That Will Enliven This Festive Occasion	

What to Say for Closing Day	30c
Good Dialogs, Exercises, Etc. for Closing Day.	

SEND ORDERS TO
ELDRIDGE ENTERTAINMENT HOUSE

Franklin, Ohio

THE FAIRY AND THE WITCH

An allegorical sketch for Hallowe'en, in which is
related the fall of Black Witch and the
rise of White Fairy.

By A. D. NELSON.

Copyright, 1915, Eldridge Entertainment House.

ELDRIDGE ENTERTAINMENT HOUSE.
FRANKLIN, OHIO.

THE FAIRY AND THE WITCH

**An allegorical sketch for Hallowe'en, in which is
related the fall of Black Witch and the
rise of White Fairy.**

By A. D. NELSON.

Copyright, 1915, Eldridge Entertainment House.

**ELDRIDGE ENTERTAINMENT HOUSE.
FRANKLIN, OHIO.**

PROPERTIES.

One black kettle or cauldron, of iron.

One tripod constructed of rough sticks about 2 inches in diameter and fastened at top by wire, chain or rope from which kettle is hung.

One wand for White Fairy.

One Black Rod for the Witch, to be so constructed that it will break into two pieces at will.

One contrivance for making a light appear in witch's kettle at will.

An organ or piano for music, off stage, if desired where indicated in lines of play.

CHARACTERS.

White Fairy—an older child, female.

Black Witch—adult, female, or an additional effectiveness can be made in the denouement if this be impersonated by a male, speaking in a shrill high-pitched falsetto.

Mirth—First Fairy Messenger, child, male or female.

Jollity—Second Fairy Messenger, child, male or female.

Erebus—Imp of Blackness, child, male or female.

Noctis—Black Fury of Night, child, male or female.

The Children—in any number.

COSTUMES.

Conventional costume for White Fairy; also conventional witch costume for Black Witch with addition of black mask and hood for face and back of head to conceal identity. The witch costume to be so constructed that it can be easily removed.

Fairy Messengers clad in white or some diaphanous drapery of light blue or pink.

Erebus and Noctis costumes, black, armless inverted sacks running from a point above head to a fullness at shoes with eye-holes, etc., cut in proper place.

Children costumes, as they may be dressed.

The Fairy and The Witch.

(Scene: A clearing in the forest, with Witch's kettle suspended on tripod near the Right Front of Stage. No scenery is necessary but an added effectiveness can be secured if play is given out of doors.)

(Enter White Fairy from back of stage, to accompaniment of light, lilting music if desired. White Fairy in pantomime casts spell over region by tripping lightly to right of stage and waving wand, thence over kettle, thence to front, thence to left. Exit White Fairy at rear, music ceases.)

(Enter Black Witch from left, plods toward kettle chuckling fiendishly. Bends over kettle, presumably examining it, then moves towards left across front of stage during reading of lines.)

Black Witch (boastfully) Mistress of this black night am I. Witch and wizard of all the powers of night and darkness I am. Supreme above all good in the Spirit World, tonight on mundane earth. I come to work my spell and my skill in arts malign display. Not all the holy saints, who tomorrow rule the day, can wrest from me my power of night—Hallowe'en! *(in derision)* A hallowed evening! Oh, ho, ho! Ah, ha, ha!! From that proud eminence brought low by me and now decreed to devilish deeds and dark! Thus shall it ever be. *(Calling toward left, off stage.)* Come now my hosts of somber reputation. Make merry! With fell design make we night hideous. Come Owl and hoot for me! *(Listens, no response, calls louder.)* Come Owl! Hoot Owl! *(Owl hoots off stage, left. Aside, chuckling.)* Didst hear the old fool hoot? *(Calling owl)* Come nearer Owl, perch thou upon my shoulder. *(Owl hoots again very faintly. Pleading)* Come Owl, Owl come! *(No response. Grows slightly alarmed. Muses)* What portends this? Am I now to lose my power as Jove hath so long menaced? Owl has fled and will not come to me. *(Pauses, resumes hopefully)* Ah, well, in my train come others who will heed and answer me. This night Black Witch must have her way!

(During next lines while calling upon her hosts the Witch moves to and fro calling toward different sections of the region as taste may dictate except as indicated with the lines.)

Black Witch Black Cat, most common beast of evil augury, what sayest thou? Come forth Black Cat. Let thy penetrating howl echo through the wood. Roost thou upon my back. Come Black Cat, oh! Black Cat come! *(Pauses, looks expectantly toward tree, no response. Then muses a trifle sadly.)* Ah! 'tis indeed a night of evil omen when my own Black Cat forsaketh me. *(Turning hopefully)* Raven! Thou bird of sable plumage, bleak and drear, hear thy mistress call. Sound thy raucous note athwart the evening air. Come Raven! bear me company. *(Pauses, no response. Despairingly)* Raven too is gone and will not heed my voice. *(Brightening)* Oh! well, not yet do we despair, with ill intent and fury unabated call we yet others! *(From front center of stage directly facing audience.)* Come snake! sleek-bellied serpent, curse of women, cursed by men, come forth my own beloved. *(Drags point of cane, wiggling, along ground from stage front towards self.)* Start from thy hole, oh! snake of mine. Let thy rattling hisses be heard among the leaves. Coil clammily around me! *(Pauses, no response, resumes furiously)* Seven curses be upon thee, pampered pet of Eve, and thou wilt not come! *(Turns away in despair and next calls with rather hopeless air.)* Jackal, night prowler of the forest, hast thou joined this motley crew of renegades? *(Pleadingly)* Heed my voice, oh! Jackal! Prithee leave thy secret lair; come forth! Strike thy eerie call weird and dominant! Soft-footed creep through the forest aisles reposing at my feet. *(Pauses, no response, resumes furiously.)* Keep to thy den accursed beast forever! Rot and die!

Black Witch (Musing sadly) Even yet, methinks, I must rely upon my frisky imps of darkness to aid in this foul festival! *(Again brightens hopefully, exclaims)* But no! But no!

(At this line Black Witch should be near front of stage at point directly in front of place where Mirth will enter. During next lines Black Witch raises arms aloft in supplication and backs toward place of Mirth's entrance.)

Black Witch (Moving backwards, hands aloft in earnest supplication.)
Come, Wind of night! oh, Night Wind come! Thy blasting fury loose upon
this world! *(Pauses, drops arms, no response, again muses sadly.)* Ah!
Wind of Night, on which I've drifted through the sky these thousand years,
hast thou too deserted me? *(Again raises arms aloft and cries in*
desperation) Will none come forth to do my will?

*(Enter Mirth, silently, directly behind Black Witch. Remains
behind B. W. and out of her sight, dogging her footsteps,
poking fun at her, making grimaces, etc.)*

Black Witch (Moving towards kettle soliloquizing brokenly) Ah, mighty
Jove, hast thou delivered me unto mine enemies on this dark night of all
dark nights?—Some one has cast a spell upon the place and for the moment
I am powerless—Aye! for the moment! *(looks at her rod as if conscious of
it for the first time)* But I have still my trusty rod of black, and it will yet
dispel this impotence oppressive—Though my voice fail this rod will fail
me not!

*(Makes passes over kettle with rod and turning slightly
catches sight of Mirth.)*

*Black Witch (Rather amused as if White Fairy were a foe of small
consequence.)* Ah, ha! White Fairy is now revealed as Jove's agent to work
my ruin and she hath sent Mirth, her messenger, to haunt my footsteps and
bedevil me! *(chuckles, then calls)* Come Erebus, Imp of Blackness, come!
Make haste and drive this Mirth away.

(Erebus groans, off stage, left)

(Enter Erebus from left, treading slowly and heavily)

Black Witch What ails thee, Imp of Blackness?

Erebus (Yawning) I sleep and cannot wake. My feet drag like lead behind
me. *(groans)* My eyes will not open and my body wilts in sleep.

Black Witch (Musing) It is the dread fairy spell! *(severely to Erebus)* Cease
thy deep grumblings and drive Mirth away from here.

*(Erebus takes after Mirth. Mirth tripping lightly, Erebus
dragging himself along heavily.)*

(Exeunt Erebus and Mirth to back of stage.)

Black Witch (Calling, toward left) Come also Noctis, Black Fury of the night, come too! Speed thee hence. Lend thy brother aid.

(Enter Noctis, moaning and yawning, also treading heavily as if in a stupor.)

Noctis (Lifelessly) Did call me, mother Witch?

Black Witch (Sharply) I did, and art thou also sodden with a heavy stupor?

Noctis (Trembling) I am, dread mother Witch. My eyes refuse to open and my feet will not obey my will.

Black Witch (Impatiently) Cease thy grumblings and be thankful that you live.

(Enter Erebus from back moving with crestfallen air towards witch.)

Black Witch Even now methinks almighty Jove hath delivered this region to White Fairy and our course is run. *(turns to Erebus)* Did Mirth escape thee? *(Erebus bows head)* Sodden Imp! *(to both)* But come, let us brew our witch's brew. Gather around and with mighty magic incantation will we boil a brew to blight the world.

(Enter Mirth and Jollity from back as Black Witch, Erebus and Noctis move toward kettle. Mirth and Jollity dog footsteps of the three, remaining out of sight poking fun at Witch, etc. Black Witch, Erebus and Noctis begin to spread out around kettle while Black Witch makes few passes with wand. She catches sight of Mirth and Jollity and screeches.)

Black Witch (Screeching) Erebus and Noctis! fly after these unholy imps of light!

(Erebus and Noctis pursue Mirth and Jollity, the fairy messengers tripping lightly, Erebus and Noctis following heavily. Exeunt, the four, to back of stage.)

Black Witch (following a few steps) Fly, fly! Let not your footsteps laggard be. Capture them and, returning hence, let their bones and flesh serve but to fill the pot. *(Turns toward kettle, chuckling with glee.)* Oh, ho, ho! Ah, ha,

ha! Two fairy messengers to grace the witch's brew. Fine will be the scent as their bones are burned and flesh is boiled into the stew! (*Turning*) Erebus and Noctis, fail me not!

(Enter Erebus and Noctis returning from chase empty handed, from back of stage.)

Black Witch Didst let them escape thee, dull imps?

Erebus and Noctis (heads hanging) Aye, dread mother.

Black Witch (Beating Erebus and Noctis about shoulders with rod) Stupid dullards! Worthless laggards! See that ye fail me not again! (*Indignant*) Come with me and gather 'round the cauldron.

(They move over to kettle and take positions around it. Black Witch makes passes with rod and at signal from Black Witch all three chant chorus of incantation song. The solo stanzas of this song, also the chorus are to be droned out in a slow, sing-song chant, no particular tune or melody desired. Make it as weirdly unmusical and inharmonious as possible, but let the words "get across" distinctly.)

Chorus (Black Witch, Erebus and Noctis, while moving around the kettle circling slowly.)

We're watching the pot and it's going to boil;
The air will get hot and this region will spoil,
But that matters not for we brew witches' oil.

(Stop circling. Black Witch waves rod. She reaches over and fingers the head of Erebus, tosses hand toward cauldron. Repeats process with Noctis. The three immediately resume circling around kettle while Black Witch sings first stanza in solo.)

Black Witch (solo chant)

1 A louse and a lizard
And two babies fair;
The brains of a pole-cat,
Some coyote's hair;
Animals, reptiles

And birds of the air,
We take of their entrails
And stir them with care.

Chorus (the three, still circling)

We're watching the pot and it's going to boil,
The air will get hot and this region will spoil,
But that matters not for we brew witches' oil.

(All cease circling at conclusion of this chorus. Black Witch to be behind kettle facing audience. Erebus and Noctis on each side. While Black Witch sings next stanza the three sway back and forth but do not circle around.)

Black Witch (solo chants)

2 To those must be added
The element, strife;
Some envy and malice—
The ills of our life—
Vengeance and jealousy,
Backbiting, lies,
All put in the kettle
With things we despise!

(The three immediately begin circling again and chant chorus.)

All We're watching the pot and it's going to boil,
The air will get hot and this region——

Black Witch (Interrupting hysterically and shaking rod menacingly towards Erebus and Noctis in turn.) Curses upon thee, torpid imps! Canst not chant with thy wonted vim? Let thy voices swell to the far gods, else will sovereign Jove hear us not. Raise thy voices. I command thee!

(The three resume circling and re-commence the chorus, Erebus and Noctis chanting louder.)

All We're watching the pot and it's going to boil,
The air will get hot and this region will spoil,
But that matters not for we——

Black Witch (Interrupting by beating the kettle with rod and screaming furiously) Curses upon thee, dead! black! pot!!

(Enter White Fairy at back of stage at word “pot”. Fairy raises wand. Light appears inside of kettle as Black Witch beats it, to be so timed that the glow appears at instant White Fairy raises wand.)

Black Witch (screaming triumphantly) Ha! ha! it comes! Light comes—light make fire—come fire—fire come!

White Fairy (coming forward and interrupting) Stop! I command thee, stop!

(Erebus and Noctis shiver, moan and fall prone on the ground, remaining there until told to fly by Black Witch.)

Fairy (From position a trifle to the left and back of kettle, gazing steadily at Witch, ignoring imps.) This night thou art delivered unto me.

Black Witch (moving toward Fairy) Not so, not so, loathed Fairy. Though ages old I still am young and thou shalt not prevail.

Fairy (calmly) Thy power is gone——

Black Witch (Interrupting in derision) Not yet, dear Fairy! (continues with air of triumph) See yonder glow in my black pot? With my rod I brought it and it will burn and brighten until thee and thine consumed and parched be, and the whole world blighted. This rod, my power, though it weakened be, is potent still and thou canst do naught against me——

Fairy (Interrupting with cool hauteur) That light is mine. I caused it there. Forever it will glow—a fairy gleam to light and bless the world. Thy power is gone, thy rod is dead.

(Black Witch begins to laugh scornfully, moves over and gazes into pot, is startled and laugh is choked down.)

Black Witch (murmuring hopelessly) 'Tis true. 'Tis true.

(Black Witch grows afraid, moves away from kettle towards left across front of stage, muttering. Fairy maintains her original position but turns around slowly following movements of Black Witch with her eye. Fairy makes passes

with wand toward Black Witch. Black Witch trembles and becomes furiously enraged.)

Black Witch (hysterically) Begone, foul fairy, ere I smite thee dead!

Fairy (Calmly) Do thy worst. Thy worst is less than none.

(Black Witch grows desperate, approaches White Fairy and raises rod to strike her. At this moment B. W. should be to left of Fairy.)

Black Witch With mine omnipotent rod I kill thee!

(Fairy smiles, holds forth her wand. Arms of Black Witch become rigid in mid-air.)

Black Witch (screaming) Fly Erebus and Noctis, Imps of Blackness, for your lives make haste! Away! Away!

(Exeunt Erebus and Noctis to back passing to the right and behind Witch and Fairy.)

White Fairy (still smiling) Break rod, rod break!

(Touches rod with wand, rod breaks.)

White Fairy (slightly toward audience) And thus shall broken be her power forevermore.

(White Fairy waves her wand toward Black Witch, Black Witch trembles, groans, broken piece of rod falls from her hand.)

Black Witch (muttering) 'Tis true. 'Tis true. Jove hath forsaken me and aids this young sprite to do me harm—— *(words trail off into silence as White Fairy continues to wave wand.)*

White Fairy (Low and rather sadly) Thy lips are silent now forever. Now thou must sleep—sleep witch, no longer witch.

(White Fairy continues to wave wand slowly. Black Witch nods head drowsily, wilts into sleep and falls to ground.)

White Fairy Thou hast fallen. A deeper sleep is thine than fell upon the Imps of Blackness. Sleep forever—wake no more!

(Black Witch exhales one last breath. Dies.)

White Fairy (solemnly) Thine is a sleep eternal. Thou art dead.

(White Fairy gives one last pitiful look at dead Witch, then turns away smiling.)

White Fairy (calling) Come Mirth and Jollity! Come, children, come.

(Mirth and Jollity and children, come tripping in with exclamations of childish delight, etc., until they spy the dead Witch; then their cries are hushed, their tripping ceases and they move furtively on tip-toe over to White Fairy glancing at her for explanations.)

White Fairy Black Witch is dead. Her power is gone, and Hallowe'en shall always be a hallowed evening—holy night! redeemed from evil by the power of light. Let men rejoice and women sing. Let children play and dance. This night, henceforth, is sacred to the joys of children.

(Children clap hands in applause.)

White Fairy Come! let us dance.

(Music starts up. Any lively dance song for children such as can be found in any school music book will be suitable here. All clasp hands and begin to circle around kettle, singing and dancing. Music breaks off and all stop singing abruptly in middle of first stanza. Children all glance towards dead Witch then towards Fairy.)

White Fairy What is it, children?

Mirth Good Fairy, we want no one to die.

White Fairy (touching Mirth with wand) Bless you, dear messenger of mine, but the witch is evil and cannot live.

Jollity Can't you give the witch her life but keep her evil power away from her?

Children (in unison) Please good Fairy, restore the Witch's life! Please oh! please.

White Fairy (pondering) Your pleas move me. I will restore the witch's life. In Spirit world she can no longer live. A mortal, she must dwell upon the earth.

(Children cluster in "background" as Fairy goes toward Witch.)

White Fairy (touching Witch with wand) Insensate clay awake! Moved by the tears of children, whom thou hast terrified and wronged, I give thee life. Thou canst no longer dwell with spirits. Wake in mortal form!

(Witch begins to show signs of life as White Fairy continues to wave wand.)

White Fairy (Resuming) Too long hast thou disgraced thy sex in Spirit World, in mortal life thou shalt assume the guise of man.

(During preceding lines Witch must unfasten necessary strings, hooks, etc., to allow entire costume to fall off as she rises. Fairy reads next line upon receiving signal from Witch that all is ready.)

White Fairy (stepping back and raising wand) Rise mortal man.

(Mortal rises, children cheer.)

White Fairy (Continuing) Be grateful for thy life.

Note—If part of Witch is played by female omit this line and change words to feminine gender in following lines where necessary. In the original production the Witch was effectively impersonated by a young man thus bringing out a stronger anti-climax upon restoration to life.

Mortal (bowing) I am grateful.

(Fairy disposes of wand by hanging it on her dress.)

White Fairy Thy life is due these children. See thou be good to them else will thy life be forfeited to me again. Love them, I command thee.

Mortal (bowing low and gently kissing Fairy's hand) I will love them and obey thee, most gracious majesty.

(White Fairy and Mortal clasp hands and turn toward audience.)

White Fairy Thus ever shall the powers of night and darkness be dispelled.

Mortal And good will triumph over evil everywhere.

(They bow to audience and to each other.)

White Fairy Will dance with us, my Lord?

Mortal Your majesty doth honor me.

(All join hands circling around kettle and sing dance song. Organ glides into march at end. All march off, Fairy and Mortal in lead, then Mirth and Jollity, followed by children. Exunt all.)

CURTAIN.

TWO PLAYS FOR BOYS

By SEYMOUR S. TIBBALS.

Mr. Tibbals has been unusually successful in furnishing boys' plays that introduce characters true to life. While the plays are strong and forceful in the lessons they teach, clean comedy predominates and the boys like them.

“The Millionaire Janitor”

A comedy in two acts. Here is a rollicking play for eight or more boys with plenty of action. Just the thing for a Boys' Class or Junior Y.M.C.A. Easily staged and costumed. Opportunity for introduction of musical numbers and recitations. By introducing such features the play may be used for an entire evening's entertainment.

Price 25 Cents

“Up Caesar's Creek”

A splendid play for any number of boys. The characters are real boys and the play deals with their experiences while camping up Caesar's Creek the performance closing with a minstrel show in camp. Costumes and scenery are not elaborate and the play may be produced on any stage.

Price 25 Cents

These comedies are protected by copyright, but permission for amateur production is granted with the purchase of the

book.

ELDRIDGE ENTERTAINMENT HOUSE
Franklin, Ohio

“THE HOUSE THAT HELPS”

WE ARE SPECIALISTS IN

Amateur Entertainments

It is not a side line with us, but we
devote our entire time to that business

Realizing that many people have grown weary of searching through catalogs and reading entertainments only to discard them as unavailable we appreciate the fact that our customers have often spoken of us as “the house that helps.” We have had practical experience in selecting and producing amateur entertainments and we feel that we know what will please the public, and what can be produced under certain conditions. **Our experience is at your disposal.** Write us, giving full particulars of your special need in the way of an entertainment, and we will select a play, an operetta, a drill or even an entire program for you. **But always enclose a stamp for the reply.**

Remember, that in addition to our entertainments we carry a large line of publications of other dealers. If in doubt as to the entertainment you desire, send particulars and we will suggest something to fit.

We are at your service.

ELDRIDGE ENTERTAINMENT HOUSE
Franklin, Ohio

TRANSCRIBER'S NOTE:

Obvious typographical errors have been corrected.

Inconsistencies in hyphenation have been standardized.

*** END OF THE PROJECT GUTENBERG EBOOK THE FAIRY AND
THE WITCH ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.